

Juratus 11 Martii anno 5^o Jacobi regis [Sworn 11 March 1608]

William Mill¹

The answer of John Lewis, esquire, one of the defendants for his part to the bill of complaint of Rees ap Jevan Lloyd, gentleman, complainant.

The said defendant saith that the said bill of complaint exhibited against this defendant and others into this honourable court is for the most part and in the chief and material matters and things therein contained very untrue and scandalous, and as this defendant is by his learned counsel informed uncertain and insufficient in the law to be answered unto by this defendant for sundry imperfections therein appearing, devised, framed and contrived by the complainant by the procurement and direction of the said William Bulkeley in the said bill of complaint named and others his friends (as this defendant verily believeth and is persuaded in his conscience) of purpose not only to vex and trouble this defendant with long and tedious suits in law without any colour or good ground of suit (as it seemeth), but also to strike a fear into the hearts of all such freeholders of the said county of Anglesey as at the next Great Sessions to be holden for the said county of Anglesey shall be returned or impanelled for or upon the trial of the said William Bulkeley who standeth indicted at the said Great Sessions as an accessory for the willful murdering of the said Hugh ap William Price in the said bill of complaint named, and of other the friends of the said William Bulkeley who stand there also indicted as principals for the said murder and are then also to receive their trial, whereof this

¹ Clerk of the court of Star Chamber: Surrey History Centre LM/COR/3/540.

defendant humbly prayeth this honourable court to have due consideration, and to be hence dismissed with his reasonable charges herein sustained.

And yet nevertheless, if the said defendant shall be ordered or compelled to make any answer to the said frivolous and insufficient bill of complaint, then having the benefit and advantage of exception to the uncertainty, insufficiency and other the imperfections, defects and defaults of the said bill of complaint unto the said defendant now and at all times hereafter saved and allowed, the said defendant for answer to so much of the said bill of complaint as doth any way concern him, this defendant saith that he is not guilty of the said unlawful and indirect plots, practices, confederacies, combinations, assaults, unlawful actions, corruption, selling of offices and other the offences, abuses and misdemeanours in the said bill of complaint mentioned or specified, nor of any of them, in such sort, manner and form as in and by the said bill of complaint is supposed.

Howbeit this defendant, for the further satisfaction of this honourable court and for the declaration and manifestation of the truth of so much of the said bill of complaint as doth concern him this defendant, saith that about the month of February Anno Domini 1605 [February 1606] this defendant John Lewis was, by virtue of his majesty's commission under the great seal of England, nominated and appointed to be sheriff of the said county of Anglesey for the year then next following, or during his majesty's pleasure therein. And in or about the month of August last past in the said bill of complaint mentioned, the said defendant John Lewis, being then high sheriff of the said county of Anglesey as aforesaid, did then according to his place and office, without any partiality, favour, affection, hatred or malice towards any person or persons therein used, return the said grand jury in the said bill of complaint mentioned of such sufficient persons, as well esquires as gentlemen and other good and substantial freeholders of the said county of Anglesey, as well requisite for his majesty's service then in hand, and such as very few to this defendant's knowledge could take

any lawful exceptions to any of them being (as this defendant taketh it) the said persons in and by the said bill of complaint mentioned to be returned upon the said grand jury by this defendant as sheriff of the said county about August last past, but for the more certainty thereof he refers himself to the said return, being of record amongst others his majesty's records of the said county. And doth not know that the said persons so returned and sworn upon the said jury were noted in and throughout the said county to be [in] confederacy together or had by solemn oath or otherwise bound themselves each to other to hold together in all actions whatsoever to this defendant's knowledge. In or about which time a bill of indictment was preferred against the said Richard ap John, William Price, Richard ap Richard, Morris ap William and Edward ap John ~~and William Bulkeley~~ for the murdering of the said Hugh ap William Price in the said bill of complaint named as a place called Red Wharf (*the Redwharth*) in the said county of Anglesey. And the said Richard ap John, William Price, Richard ap Richard, Morris ap William and Edward ap John were then by the said grand jury upon good and pregnant proof as this defendant thinketh, by the said grand jury indicted for the said murder of the said Hugh ap William Price, as in the said bill of complaint is declared.

And this defendant further saith that at or about the said month of October last past, at the Great Sessions holden for the said county of Anglesey before the said William Leighton and Richard Barker, esquires, in the said bill of complaint also named, his majesty's chief justices of the said Great Sessions this defendant,² then being high sheriff of the said county as aforesaid, did return a jury to pass upon the life and death of such prisoners as were then appointed to take their trial of good and substantial gentleman and freeholders of the said

² [Margin]: *Jones*; in his deposition, Rees ap Jevan Lloyd named 'Mr Jones' as his attorney in court.

county of Anglesey, without any such blot, blemish or disability as by the said bill is supposed for anything this defendant knew.

And before any of the said jury upon life and death were sworn, the prisoners then at bar to take their trial were openly and publicly warned to look <to> their challenge, and their lawful challenges were then by the said justices allowed (as this defendant believeth).

And this defendant also saith that he, being high sheriff of the said county, did also return the grand jury for the body of the said county of such as esquires, gentleman and other substantial freeholders of the said county as this defendant conceived to be the most indifferent for his majesty and the service then in hand at the said Great Sessions holden in the said month of October now last past before his majesty's said chief justices of the said Great Sessions, which said grand jury lastly returned by this defendant did upon such evidence as were then given and delivered in open court on his majesty's behalf against the said William Bulkeleye indict the said William Bulkeleye as accessory to the said murder before the fact committed. All which said several returns so made by this defendant were made and done by this defendant sincerely and plainly without any partiality, favour, malice or respect of any person or persons whatsoever therein used or showed.

And this defendant further saith that there was no such plot, practice or confederacy between the said defendant and the said Mr Justice Barker about the time in the said bill specified, or <at> any other time or with any other for or touching the making and appointing of this defendant high sheriff of the said county for the year then next following or otherwise, for this defendant saith that he this defendant, understanding that he was in the return amongst others, did write his letter to some special friend of his here in London to make some means that he should not be sheriff for that time, neither was there any plot, practice, confederacy or combination between this defendant and the said Mr Barker or any other touching the calling

in question of any of the said persons in the said bill of complaint named for the murder of the said Hugh ap William Price.

And the said defendant further saith that in all the said several proceedings in or upon the said indictments, the said Mr Justice Barker used and behaved himself so uprightly, indifferently and justly in his place, and with <such> integrity and sincerity that (as this defendant thinketh) none that were then present – no not the offenders themselves and such of their friends as earnestly laboured to save their lives – could have no just cause to mislike or think amiss of his said proceedings.

And this defendant thinketh in his conscience that the complainant, being of such mean estate <not worth 10 shillings in all the world to this defendant's knowledge> and one that, together with an elder brother of his, have been indicted as accessory for the willful murdering of the wife of the said elder brother, and upon their trial the said elder brother was thereof found guilty and the said complainant very hardly escaped and was found not guilty, is countenanced and maintained herein by some privy adversary that will not himself (as it seemeth) be seen in these actions, who hath caused the said complainant (as this defendant thinketh[]) to prefer this scandalous and infamous bill into this honourable court against that reverend justice, by means of whose coming into those countries diverse abuses, enormities and oppressions there before tolerated and winked at are now (God be praised) well reformed and banished, and the whole country much bettered and amended.

And as touching the removing <to> and keeping of the said Edward ap John out of the said gaol of the said county at the house of the said defendant John Lewis, this defendant saith that forasmuch as the sheriff gaol of the said county of Anglesey was usually for the most part kept at or within some part of the castle of Beaumaris (*Bewmares*) in the said county, of which castle Sir Richard Bulkeley, knight, was and yet is constable or pretendeth so to be,

this defendant did send to the said Sir Richard Bulkeley, desiring him that he might have the keys of the said castle and gaol to his hands for the more sure keeping of the prisoners that were remaining <in> or should be during his sheriffwick committed to the said gaol.

Howbeit the said Sir Richard Bulkeley did [(as the said <defendant> was informed by the said messenger so in that behalf sent) return this answer or to this effect, that is the say that the said defendant should not have the key of the castle, but the gaoler appointed by the said Sir Richard Bulkeley and not the gaoler of this defendant should from time to time attend the said defendant or his deputy or any his servants whensoever occasion were given with the key of the said castle to go to the said prison within the said castle, which answer this defendant did not well like of, in respect that many prisoners had lately before made escapes out of the said gaol and castle, either by the willfulness or negligence of the gaoler of the said gaol for the time being, having the keeping of the key of the said castle, and in respect also that some of the prisoners remaining in gaol there within the said castle, being near friends to and <dependants> upon the said Sir Richard Bulkeley (as this defendant conceived) might the more easily escape out of the said gaol or prison for want of the key of the said castle to see and watch the said prisoners at convenient times.

Whereupon this defendant, for his better safety and security therein, being sheriff as aforesaid <and dwelling far distant from the said castle> procured a commission from the king's majesty's council established in the marches of Wales for keeping of the gaol and removing of the said prisoners to his own house, where he might the better intend to look unto them, as other sheriffs had formerly done upon the like occasions.

By virtue of which commission, the said defendant removed the said Edward ap John and other prisoners to his the said defendant John Lewis's house, where to his great charges and expenses, being driven to find and maintain men to watch them night and day during the

space of [*blank*], the said prisoners remained until they were returned over to the now sheriff of that county, as lawfully he might do to this defendant's knowledge.

And as touching the not making or appointing and proclaiming of [a] deputy sheriff in such convenient time as by the laws and statutes of this realm is in such cases required, and selling of offices belonging to the said sheriffwick for money or other valuable considerations, this defendant saith that he very shortly after he had received his oath in that behalf, did appoint the said Dafydd³ Rees ap Hugh in the said bill of complaint named to be his deputy sheriff of the said county.

And this defendant further saith that the sheriff or his deputy (for the time being) of the said county did at their pleasure appoint the place and places for keeping of all manner of courts usual to be kept by the said sheriff of the said county for the time being or his deputy or clerk, which was sometimes available and beneficial to the said sheriff of the said county or his deputy for the time <being>.

And in regard that the said bailiff in the said bill of complaint mentioned obtained of this defendant liberty to appoint the place and places for the keeping of the courts within the several limits or bailiwicks, did receive and take some small reward of the said bailiffs or some of them for the appointing of the said places as other sheriffs there usually did and not otherwise, which was lawful for him to do to his knowledge.

All which matters the said defendant for his part is ready to aver and prove as this honourable court shall award, and prayeth to be dismissed together with his reasonable costs and charges in that business most wrongfully sustained.

Lloyd

³ *Dafydd* uncertain reading.